

HOUSE BILL 2226

By Maberry

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to local education agencies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-5-601, is amended by deleting subdivision (b)(3) and subsections (c)-(e).

SECTION 2. Tennessee Code Annotated, Section 49-5-602(2), is amended by deleting the subdivision and substituting:

(2) "Collaborative conferencing" means the process by which the chair of a board of education and the board's professional employees through designated representatives for either party meet at reasonable times to confer, consult, and discuss and to exchange information, opinions, and proposals on matters relating to the terms and conditions of professional employee service;

SECTION 3. Tennessee Code Annotated, Section 49-5-602(10), is amended by deleting the subdivision and substituting:

(10) "Representative":

(A) Means an organization or association that is designated and authorized by professional employees or the local board of education to act for the respective professional employees or the local board of education; and

(B) Does not include an attorney;

SECTION 4. Tennessee Code Annotated, Section 49-5-603, is amended by deleting the section and substituting:

(a) Professional employees have the right to request that the professional employees' local board of education meet at reasonable times to confer, consult, and

discuss and to exchange information, opinions, and proposals on matters relating to the terms and conditions of professional employee service. A local board of education also has the right to refuse a professional employee's request submitted pursuant to this subsection (a).

(b) Professional employees also have the right to refrain from any or all activities described in subsection (a).

(c) A professional employee shall not engage or participate in collaborative conferencing.

SECTION 5. Tennessee Code Annotated, Section 49-5-605, is amended by deleting this section and substituting:

(a) A local board of education shall not engage or participate in collaborative conferencing.

(b) This section does not prohibit a local board of education from voluntarily engaging or participating in consultation with a professional employee.

SECTION 6. Tennessee Code Annotated, Section 49-5-606(a), is amended by deleting subdivision (3).

SECTION 7. Tennessee Code Annotated, Section 49-5-606(a)(4), is amended by deleting the subdivision and substituting:

(4) Permit a professional employees' organization to use or access facilities that are otherwise prohibited by a local board's policies or procedures for community use;

SECTION 8. Tennessee Code Annotated, Section 49-5-606(b), is amended by deleting subdivision (2).

SECTION 9. Tennessee Code Annotated, Section 49-5-606(c)(4), is amended by deleting "resumption of collaborative conferencing or".

SECTION 10. Tennessee Code Annotated, Section 49-5-607, is amended by deleting subsection (c).

SECTION 11. Tennessee Code Annotated, Section 49-5-608, is amended by adding the following as a new subsection:

(d) This section is repealed on July 1, 2026. The repeal of this section does not affect the rights and obligations or terms of any existing memoranda of understanding that were entered into prior to July 1, 2026.

SECTION 12. This act does not abridge or impair a contract or agreement entered into before July 1, 2026. Any such contract or agreement remains in full force and effect until the expiration of the contract or agreement.

SECTION 13. This act takes effect July 1, 2026, the public welfare requiring it.